

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Rasenberger	Team: Squad #7	CCRB Case #: 201907621	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/25/2019 3:20 AM, Sunday, 08/25/2019 8:00 AM	Location of Incident: § 87(2)(b)	Precinct: 67	18 Mo. SOL 2/25/2021	EO SOL 10/12/2021	
Date/Time CV Reported Tue, 08/27/2019 9:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/27/2019 9:57 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Montross	25528	946523	067 PCT
2. SGT Michael Cozier	01144	943112	067 PCT
3. POM Ricardo Martinez	19264	950834	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Delio Fernandez	16156	957578	067 PCT
2. POM Denis Gamez	07601	949000	067 PCT
3. POM Daohui Tang	16165	955558	067 PCT
4. POM Albert Cruzmeza	20991	962999	067 PCT
5. POM Rafael Jimenez	01640	964573	067 PCT
6. POM Nayef Shahib	15332	961277	067 PCT
7. POM Nicholas Schiraldi	26039	958061	067 PCT
8. POM Joseph Bautista	00113	954534	INT CIS

Officer(s)	Allegation	Investigator Recommendation
A.SGT Michael Cozier	Abuse: Sergeant Michael Cozier entered § 87(2)(b)	§ 87(2)(b)
B.SGT Michael Cozier	Abuse: Sergeant Michael Cozier searched § 87(2)(b)	§ 87(2)(b)
C.POM Ricardo Martinez	Abuse: Police Officer Ricardo Martinez searched an individual's property inside of § 87(2)(b)	§ 87(2)(b)
D.SGT Michael Cozier	Abuse: Sergeant Michael Cozier interfered with § 87(2)(b)'s use of a recording device.	§ 87(2)(b)
E.POM Brian Montross	Discourtesy: Police Officer Brian Montross spoke discourteously to § 87(2)(b)	§ 87(2)(b)

Case Summary

On August 27th, 2019, the CCRB received the following complaint, via telephone, from § 87(2)(b) [BR 1].

On August 25th, 2019, Sgt. Michael Cozier of the 67th Precinct, along with approximately 10 officers assigned to the 67th Precinct, entered an illegal bottle club operating in the basement on § 87(2)(b) in Brooklyn (**Allegation A: Abuse of Authority - Entry of Premises, § 87(2)(g)**). The officers cleared the basement of approximately 50-75 paying customers, and then conducted a search throughout the premises (**Allegation B: Abuse of Authority – Search of Premises, § 87(2)(g)**). During this search, Police Officer Ricardo Martinez opened and searched a backpack inside of the basement (**Allegation C: Abuse of Authority – Search of Personal Property, § 87(2)(g)**). Minutes later, PO Martinez located a firearm in plain view. Sgt. Cozier requested the Evidence Collection Team (ECT) to the scene, and assigned two officers to safeguard the location while awaiting ECT. Before he left the scene, Sgt. Cozier used a black cloth to cover a surveillance camera that § 87(2)(b) was operating inside of the basement (**Allegation D: Abuse of Authority – Interference with Recording Device, § 87(2)(g)**). At around 8 a.m., § 87(2)(b) tried to enter the basement, to obtain information from the officers on-scene. Police Officer Brian Montross, one of two officers assigned to safeguard the location, prevented § 87(2)(b) from entering and allegedly told her to “get the fuck out” (**Allegation E: Discourtesy – Word, § 87(2)(g)**).

The CCRB received 9 body-worn camera videos of the incident from the NYPD Legal Unit [BR 02].

Findings and Recommendations

Allegation A: Sergeant Michael Cozier entered the basement of § 87(2)(b).

Allegation B: Sergeant Michael Cozier searched the basement of § 87(2)(b).

It is undisputed that on August 25th, 2019, at about 3:20 a.m., Sgt. Michael Cozier and members of his Bottle Clubs Team, all officers assigned to the 67th Precinct, entered the basement of § 87(2)(b) where multiple civilians were drinking and having a party. Sgt. Cozier and his team then ordered civilians to leave the basement, as shown, for example, in footage from PO Gamez’s body-worn camera [BR 03] from 1:55 to 3:00, and footage from PO Martinez’s body-worn camera [BR 04], from 00:40 to 1:20.

§ 87(2)(b) who owns § 87(2)(b) stated during her CCRB interview [BR 05] that the basement of § 87(2)(b) is a private residence, where her father sometimes has small parties with his friends. According to § 87(2)(b) on the night of August 24th, 2019, into the early morning of August 25th, 2019, her father was having such a party, with his friends and a few others.

Sgt. Cozier stated during his interview [BR 06] that he and the Vice Squad were working together to investigate the basement of § 87(2)(b) for many months prior to August 24th, 2019 and had determined that an illegal bottle club was being operated on the premises. Sgt. Cozier had discovered over the course of the investigation that the location was known for violent incidents and had been the subject of multiple 911 and 311 calls reporting noise violations and illegal drinking at the location. As well, Sgt. Cozier was aware of about 50 fliers advertising parties at the location. He provided a copy of a flier referring to § 87(2)(b) as § 87(2)(b)” and advertising a party there on August 24th, 2019 [BR 07]. These fliers were posted with no privacy restrictions on social media, according to Sgt. Cozier, indicating that the parties were open to the public.

Sgt. Cozier further stated that on August 24th, 2019, the Vice Squad sent an undercover officer into the location, who confirmed that a party was being set up. Sgt. Cozier decided to enter the location to perform a “business inspection” after receiving confirmation from sector officers

patrolling the area that a party was underway. Sgt. Cozier was the first MOS to enter the basement. He entered directly behind a patron, and did not need to open any doors or gates in order to enter the location.

Sgt. Cozier stated that upon entering the location, it was obviously an illegal bottle club, because there was a functional bar, a list showing the prices for various alcoholic beverages, a bartender selling alcohol, as well as DJ equipment. Footage from PO Tang's body-worn camera [BR 08], from 00:30 to 00:45, corroborates Sgt. Cozier's statement. Additionally, Sgt. Cozier asked the bartender whether the establishment had a license to sell alcohol, and the bartender admitted that it did not. Two civilians on scene, identified by Sgt. Cozier as the bartender, § 87(2)(b) and the party promoter, § 87(2)(b), were placed under arrest. According to their arrest reports [BR 09], they were each charged with multiple violations of the New York State Alcoholic Beverage Control Law, including § 87(2)(b). Sgt. Cozier also spoke with a security guard on the premises, who stated that she had been hired to collect admissions fees from customers entering the location. Sgt. Cozier and his team then searched plain-view areas of the basement for any contraband related to the illegal bottle club. Sgt. Cozier located and seized various alcoholic beverages, as well as cash proceeds that were in an open bin behind the bar.

In *People v. Perez* (1980), the facts of the case were as follows. Two police officers entered, through an unlocked door, into what appeared to be a commercial business. The officers then discovered an illegal gambling operation on the premises, and arrested the proprietors. In finding that the entry and arrest were proper, the Court held that what a person knowingly exposes to the public, even in his own home or office, is not a subject of Fourth Amendment protection. There is no expectation of privacy in public areas of a commercial establishment; therefore, the court held, police officers may enter the public areas of a commercial establishment without a warrant. *People v. Perez*, 78 A.D.2d 703 [BR 10].

§ 87(2)(g)

Allegation C: Police Officer Ricardo Martinez searched an individual's property inside of § 87(2)(b).

During the search of the basement, PO Martinez opened a non-descript backpack, located immediately next to DJ equipment. Footage from his own body-worn camera, between 9:25 and 9:50, captures PO Martinez unzipping the backpack, and then shining his flashlight into the opened bag. At this point, his body-worn camera footage shows, the basement had already been cleared of civilians (except for two prisoners, as described above). PO Martinez stated during his CCRB interview [BR 11] that he had no beliefs regarding whom the bag belonged to. He explained that he picked the bag up before opening it, and felt that it was heavy and hard, and thought that he felt metal inside of the bag. Asked whether he had any specific beliefs about the contents of the bag, PO Martinez stated "it could have been a firearm." PO Martinez acknowledged that the bag turned out to contain only electronic DJ equipment.

According to NYPD Patrol Guide Procedure 212-11, an officer may not frisk or search a person's bag or other item of personal property unless the officer has reasonable suspicion to believe that the person is armed and dangerous and that the bag or item of personal property could contain a weapon and is within the person's reach. NYPD Patrol Guide Procedure 212-11 [BR 12].

§ 87(2)(g)

§ 87(2)(g)

Allegation D: Sgt. Michael Cozier interfered with § 87(2)(b)'s recording device

Minutes after searching the backpack, PO Martinez located a firearm in plain-view inside of the basement. PO Martinez alerted Sgt. Cozier about the firearm, and, in turn, Sgt. Cozier notified the Evidence Collection Team (ECT). Sgt. Cozier then froze the location, while awaiting ECT. Sgt. Cozier explained that, according to protocol for freezing a location, no one, including the owner or tenants, is allowed to enter the location. After completing the business inspection, at about 4:30 a.m., Sgt. Cozier assigned two officers from his team to safeguard the location until ECT arrived.

It is undisputed that, before leaving the scene, Sgt. Cozier used a black cloth to cover up a surveillance camera that § 87(2)(b) was operating inside of the basement. It is also undisputed that the footage from this camera could be accessed remotely and in real time. § 87(2)(b) provided a video to the CCRB showing Sgt. Cozier covering her camera [BR 13], and stated that afterward the camera was totally obstructed. Sgt. Cozier explained that he covered the camera out of caution for his officers' safety, because there were going to be only two officers on scene while awaiting ECT, and because the location was known for firearm violence. In addition, at this time there were still multiple patrons on the sidewalk outside of the basement. Sgt. Cozier's specific concern was that someone associated with the bottle club could be monitoring the officers via surveillance footage, and could potentially ambush them.

According to NYPD Patrol Guide procedure 203-29, individuals have a right to lawfully observe and/or record police activity including, but not limited to detentions, searches, arrests, and uses of force. The right extends to individuals in private places in which the individual has a legal right to be present, such as buildings or an individual's own property. However, this right to observe and/or record police action can be limited to protect the safety of officers. NYPD Patrol Guide Procedure 203-29 [BR 14].

§ 87(2)(g)

Allegation E: Police Officer Brian Montross spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that at approximately 8:00 a.m., she entered the basement of § 87(2)(b) from the sidewalk entrance. Police Officer Brian Montross approached § 87(2)(b) and repeatedly told her to "get the fuck out," while blocking her from further entering the basement.

During his CCRB interview [BR 15], PO Montross stated that he was assigned to secure the firearm that PO Martinez had discovered, while awaiting ECT. Sgt. Cozier instructed PO Montross not to allow anyone, including the owners or tenants of § 87(2)(b) to enter the basement. When § 87(2)(b) entered the basement, PO Montross approached her and told her that entry into the area was forbidden. § 87(2)(b) retreated from the basement without further incident. PO Montross denied telling § 87(2)(b) to "get the fuck out," and did not observe any other officer doing so. § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [BR 16].
- Sgt. Michael Cozier has been a member of service for thirteen years, over which time he has been a subject of 10 complaints, and 21 allegations. Three of these allegations have been substantiated. Case 201905210 involved allegations of an entry and search of an allegedly illegal bottle club, both of which were substantiated and resulted in formalized training. Case 201300682 included a substantiated allegation of issuing a retaliatory summons, which resulted in instructions. Sgt. Cozier has been the subject of three other complaints -- 201908623, 201905204, and 201907331 -- involving illegal bottle clubs. None of the allegations in these complaints was substantiated.
- PO Ricardo Martinez has been a member of service for 9 years, over which time he has been a subject of two other complaints, and two allegations. § 87(4-b) § 87(2)(g) Case 202003805 involves one allegation of physical force, and is still open to date.
- PO Brian Montross has been a member of service for 12 years, over which time he has been a subject of three complaints, and four allegations, none of which were substantiated.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation, § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED] [BR 17].
- On April 3rd, 2020, the CCRB requested from the NYC Comptroller's Officer any notices of claim related to this incident. The request yielded negative results [BR 18].

Squad No.: 7

Investigator: Will Rasenberger Will Rasenberger November 10, 2020
Signature Print Title & Name Date

Squad Leader: _____ Manager Vanessa Rosen November 10, 2020

Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____